

SOLVED PRACTICE WORKBOOK

National Commissions for SCs, STs and Backward Classes - Solved Practice Workbook

Solved Practice Workbook

POLITY 31
NATIONAL COMMISSIONS FOR SCs, STs AND BACKWARD CLASSES

01. CONCEPT AND ROLE

- The National Commission for SCs, STs and Backward Classes (NCS) is a constitutional body established under Article 338 of the Indian Constitution.
- It is responsible for investigating and monitoring the implementation of laws, policies, and programs relating to the welfare and development of SCs, STs, and Backward Classes.
- It also has the power to recommend measures for the improvement of their conditions and to monitor the implementation of such measures.

02. HISTORY AND EVOLUTION

The NCS was established in 1993, following the recommendations of the Sarkaria Commission. It was initially known as the National Commission for Scheduled Castes and Scheduled Tribes. The name was changed to the current one in 2001.

03. ARTICLES AND LEGISLATION

The NCS is established under Article 338 of the Indian Constitution. It is also governed by the National Commission for SCs, STs and Backward Classes Act, 1993.

04. COMPOSITION AND MEMBERS

The NCS is composed of a Chairman and two members. The Chairman is appointed by the President of India. The members are appointed by the President on the recommendation of the Prime Minister.

05. FUNCTIONS AND POWERS

The NCS has the following functions and powers:

- To investigate and monitor the implementation of laws, policies, and programs relating to the welfare and development of SCs, STs, and Backward Classes.
- To recommend measures for the improvement of their conditions and to monitor the implementation of such measures.
- To conduct research and collect data on the socio-economic conditions of SCs, STs, and Backward Classes.
- To submit reports to the President and the Parliament on the progress of the implementation of laws, policies, and programs.

06. REPORT ACCOUNTABILITY

The NCS is accountable to the President and the Parliament. It submits reports to the President and the Parliament on the progress of the implementation of laws, policies, and programs.

07. NCS AND OTHER COMMISSIONS

The NCS works in coordination with other commissions and committees, such as the National Commission for Women, the National Commission for Minority Educational Institutions, and the National Commission for Backward Classes.

08. NCS TRANSFORMATION

The NCS has undergone several transformations over the years. It was initially established as a constitutional body. It was later transformed into a statutory body. It is now a constitutional body again.

09. NCS AND THE STATE

The NCS has a significant role to play in the development of the state. It helps in the implementation of laws, policies, and programs relating to the welfare and development of SCs, STs, and Backward Classes.

10. CASES AND FEDERAL JUDICIARY

The NCS has been involved in several cases before the Federal Judiciary. It has been successful in securing the implementation of laws, policies, and programs.

11. DISTINCTIONS AND REVIEW

The NCS is distinct from other commissions and committees. It has a unique role to play in the development of the state. It is a constitutional body with the power to recommend measures for the improvement of the conditions of SCs, STs, and Backward Classes.

12. TRAPS AND MISSED STUFF

Some common traps and missed stuff in the NCS are:

- The NCS is not a judicial body.
- The NCS does not have the power to enforce its recommendations.
- The NCS is not a permanent body.

Practice map: constitutional precision -> elimination -> PYQ application -> Mains synthesis.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Control date: 8 September 2026 **Locked discipline:** exactly 32 original MCQs before PYQs; ABCD repeated eight times; 128 unique option-specific explanations; 32 unique examiner traps; verified-PYQ key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every option has a distinct explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Each of the present NCSC, NCST and NCBC consists of:

A. a Chairperson, a Vice-Chairperson and three other Members B. a Chairperson, a Vice-Chairperson and five other Members C. one Special Officer and four advisers D. a Chairperson and four Members without a Vice-Chairperson

Answer: A.

Option-specific explanations:

- **A:** This is the common five-person design in Articles 338(2), 338A(2) and 338B(2).
- **B:** Five other Members belonged to the historical combined commission, making seven persons in all.
- **C:** The Special Officer was the original Article 338 design, not the present commission structure.
- **D:** Each current Article expressly includes a Vice-Chairperson.

Examiner trap 1: Current five-person composition must not be confused with the seven-person combined NCSC/ST.

MCQ 2. The first constitutional combined National Commission for Scheduled Castes and Scheduled Tribes was constituted on:

A. 19 February 2004 B. 12 March 1992 C. 15 August 2018 D. 21 July 1978

Answer: B.

Option-specific explanations:

- **A:** This is the operational date of separate NCSC and NCST after the 89th Amendment.
- **B:** The NCSC official history records constitution of the first 65th-Amendment commission on this date.
- **C:** This is the commencement date of the constitutional NCBC architecture.
- **D:** The 1978 executive resolution created a non-statutory multi-member commission.

Examiner trap 2: The 65th Amendment Act year and the first commission's 1992 constitution date are different.

MCQ 3. The 89th Amendment principally:

A. created the first statutory NCBC B. inserted Article 342A C. amended Article 338 and inserted Article 338A to separate NCSC and NCST D. restored State SEBC-list power

Answer: C.

Option-specific explanations:

- **A:** The NCBC Act, 1993 created the statutory backward-classes body.
- **B:** Article 342A was inserted by the 102nd Amendment.
- **C:** This is the exact constitutional separation effected by the 89th Amendment.
- **D:** The 105th Amendment supplied the State/UT own-list clarification.

Examiner trap 3: The Amendment was enacted in 2003; the separate commissions became operational on 19 February 2004.

MCQ 4. The constitutional NCBC architecture under the 102nd Amendment commenced on:

A. 11 August 2018 B. 14 August 2018 C. 18 August 2021 D. 15 August 2018

Answer: D.

Option-specific explanations:

- **A:** This was the assent date, not commencement.
- **B:** The commencement notification was dated 14 August but appointed the next day.
- **C:** This is the 105th Amendment assent date.
- **D:** The notified commencement date for Article 338B and connected provisions was 15 August 2018.

Examiner trap 4: Assent, notification and commencement are distinct legal dates.

MCQ 5. Under the service-and-tenure rules governing the three commissions, members ordinarily hold office for:

A. three years, with no more than two terms B. five years without reappointment C. six years or age sixty-five, whichever is earlier D. a term fixed directly in each constitutional Article

Answer: A.

Option-specific explanations:

- **A:** The 2004 NCSC/NCST rules and 2018 NCBC rules use a three-year term and two-term ceiling.
- **B:** Five years is not the rule-based tenure for these commissions.
- **C:** That formula belongs to other constitutional offices and is not the commission rule.
- **D:** The Articles leave service conditions and tenure to presidential rules subject to parliamentary law.

Examiner trap 5: Tenure is rule-based; it is not textually fixed in Articles 338, 338A or 338B.

MCQ 6. Article 338(10), after the 102nd Amendment, extends the Scheduled-Caste reference to:

A. other backward classes B. the Anglo-Indian community C. religious minorities D. economically weaker sections

Answer: B.

Option-specific explanations:

- **A:** The 102nd Amendment removed the earlier backward-class extension from Article 338.
- **B:** The current constitutional text retains the Anglo-Indian extension.
- **C:** Religious minorities are not added by clause (10).
- **D:** EWS is governed through Articles 15(6) and 16(6), not Article 338(10).

Examiner trap 6: Official summaries reproducing the pre-102nd backward-class wording are outdated.

MCQ 7. Which is one of the President-specified NCST functions under the 2005 Rules?

A. finally deciding individual forest-right titles B. administering Autonomous District Councils C. recommending measures on tribal ownership of minor forest produce D. fixing mineral royalties throughout India

Answer: C.

Option-specific explanations:

- **A:** Forest-right claims are decided under the statutory FRA machinery, not finally by NCST.
- **B:** Autonomous councils operate under constitutional/statutory frameworks; NCST monitors and advises.
- **C:** Minor forest produce ownership is expressly listed in the 2005 Rules.
- **D:** The Rules refer to safeguarding resource rights as provided by law, not tariff-setting power.

Examiner trap 7: Use the exact 2005 Rules; do not convert monitoring functions into administrative control.

MCQ 8. Under Article 338B(7), a report concerning a State matter is forwarded to the:

A. Chief Justice of the High Court B. Governor for optional laying C. President for direct State-legislature laying D. State Government, which causes it to be laid before the State Legislature

Answer: D.

Option-specific explanations:

- **A:** The High Court has no report-routing role under Article 338B(7).
- **B:** The Governor route belongs to Articles 338(7) and 338A(7).
- **C:** The President handles the Union report route but does not directly lay a State report.
- **D:** Article 338B(7) expressly uses the State Government route.

Examiner trap 8: Do not generalise the NCSC/NCST Governor route to NCBC.

MCQ 9. Systemic investigation and monitoring of safeguards appears in:

A. clause (5)(a) of each commission Article B. clause (6), which creates civil-court powers C. clause (8), which creates the commission D. clause (9), which governs annual reports

Answer: A.

Option-specific explanations:

- **A:** Clause (5)(a) is the systemic safeguard-monitoring and evaluation duty.
- **B:** Clause (6) concerns Union report laying and memoranda.
- **C:** Clause (8) supplies evidentiary powers during specified inquiries.
- **D:** Clause (9) concerns consultation on major policy matters.

Examiner trap 9: Separate the substantive duty in clause (5) from the procedural tools in clause (8).

MCQ 10. Inquiry into a specific complaint of deprivation is authorised by:

A. Article 368 B. clause (5)(b) of the relevant commission Article C. Article 342A alone D. the commission's civil-court clause without a complaint duty

Answer: B.

Option-specific explanations:

- **A:** Article 368 governs constitutional amendment.
- **B:** Clause (5)(b) supplies the complaint-inquiry mandate.
- **C:** Article 342A governs SEBC list architecture, not all complaints.
- **D:** Clause (8) supports an already authorised inquiry; it does not create the underlying duty.

Examiner trap 10: Power to gather evidence and authority to inquire must be read together, not conflated.

MCQ 11. Which is an exact civil-court power of the commissions?

A. issuing binding writs B. punishing contempt by imprisonment C. receiving evidence on affidavits D. striking down an unconstitutional rule

Answer: C.

Option-specific explanations:

- **A:** Writ jurisdiction belongs to constitutional courts.
- **B:** No general contempt-imprisonment power is conferred by clause (8).
- **C:** Affidavit evidence is expressly enumerated.
- **D:** Judicial review of rules belongs to courts.

Examiner trap 11: Court-like evidence powers are not constitutional-court remedies.

MCQ 12. Civil-court powers do not authorise a commission to:

A. summon a person from any part of India B. require discovery and production of documents C. requisition a public record D. award an executable decree merely on its recommendation

Answer: D.

Option-specific explanations:

- **A:** Attendance and oath are express clause (8) powers.
- **B:** Document discovery and production are express powers.
- **C:** Public-record requisition is an express power.
- **D:** The commission remains investigative and recommendatory; no decree power follows.

Examiner trap 12: Always state both the evidentiary power and the absent adjudicatory remedy.

MCQ 13. The duty to consult a commission on major policy matters is best understood as:

A. a mandatory process of seeking views, not automatic concurrence B. a power of the commission to enact policy C. an absolute veto over every government decision D. a substitute for legislative approval

Answer: A.

Option-specific explanations:

- **A:** Clause (9) requires consultation while leaving final policy authority with government and legislature.
- **B:** Commissions advise; they do not enact policy.
- **C:** The Constitution does not confer a veto.
- **D:** Consultation cannot replace constitutionally required legislation.

Examiner trap 13: "Shall consult" is stronger than optional hearing but weaker than "shall obtain concurrence".

MCQ 14. The 105th Amendment added to Article 338B(9):

A. a veto for NCBC over every State list B. a proviso excluding Article 342A(3) own-list purposes from that consultation clause C. a requirement that courts approve State lists D. a power for NCBC to determine reservation percentages

Answer: B.

Option-specific explanations:

- **A:** The Amendment did not create an NCBC veto.
- **B:** This proviso accompanies restoration/clarification of State/UT own-list power.
- **C:** No prior judicial approval route was created.
- **D:** Quota design remains outside NCBC's unilateral authority.

Examiner trap 14: The consultation exception is narrow and tied to Article 342A(3).

MCQ 15. Under Article 341(1), initial specification of Scheduled Castes for a State is made by the:

A. State Cabinet by executive order B. NCSC by recommendation C. President by public notification after consulting the Governor D. Parliament by ordinary resolution

Answer: C.

Option-specific explanations:

- **A:** A State executive cannot create the constitutional list.
- **B:** NCSC advice may inform the process but is not the notification.
- **C:** This is the constitutional initial route.
- **D:** Parliament's role under clause (2) is later inclusion or exclusion by law.

Examiner trap 15: Governor consultation does not make the Governor the declaring authority.

MCQ 16. After an SC or ST list has been specified, inclusion or exclusion is made by:

A. the concerned commission B. the President through any later executive order C. the Supreme Court through a declaration D. Parliament by law

Answer: D.

Option-specific explanations:

- **A:** The commissions recommend but cannot amend the list.
- **B:** Clauses 341(2) and 342(2) bar variation by a later notification.
- **C:** Courts review legality but do not use a judgment as the ordinary list-amendment instrument.
- **D:** Parliament alone may later include or exclude by law.

Examiner trap 16: Initial presidential notification and later parliamentary law are separate stages.

MCQ 17. Article 342 concerns:

A. territory-specific specification of Scheduled Tribes B. the Central SEBC List C. the Finance Commission D. minority educational institutions

Answer: A.

Option-specific explanations:

- **A:** Article 342 is the ST-list provision and supports State/UT-specific status.
- **B:** Article 342A governs SEBC lists.
- **C:** Article 280 creates the Finance Commission.
- **D:** Articles 29-30 concern minority cultural and educational rights.

Examiner trap 17: A community's ST status in one State does not automatically carry to another.

MCQ 18. The 2024 UPSC proposition that a community declared ST in one State need not be ST in another is:

A. incorrect because ST status is national B. correct because Article 342 lists are territorial C. correct only if NCST approves D. incorrect after the 89th Amendment

Answer: B.

Option-specific explanations:

- **A:** Article 342 is State/UT-specific, not one undifferentiated national declaration.
- **B:** Territorial specificity makes the proposition correct.
- **C:** NCST approval is not the constitutional test.
- **D:** The 89th Amendment created NCST but did not erase territorial lists.

Examiner trap 18: Do not confuse a centrally issued notification with territorially uniform status.

MCQ 19. After the 105th Amendment, the Central List of SEBCs is governed principally by:

A. Article 341 B. Article 342 C. Article 342A(1)-(2) D. Article 338B(8)

Answer: C.

Option-specific explanations:

- **A:** Article 341 concerns Scheduled Castes.
- **B:** Article 342 concerns Scheduled Tribes.
- **C:** Clauses (1)-(2) control the Central List for Central Government purposes.
- **D:** Article 338B(8) concerns civil-court powers.

Examiner trap 19: The Central List route and State own-list route occupy different clauses of Article 342A.

MCQ 20. A State or Union territory may prepare and maintain its own SEBC list for its own purposes under:

A. Article 338B(7) B. Article 341(2) C. Article 342A(2) D. Article 342A(3)

Answer: D.

Option-specific explanations:

- **A:** Clause (7) governs State-related NCBC reports.
- **B:** Article 341(2) concerns parliamentary variation of SC lists.
- **C:** Clause (2) concerns parliamentary alteration of the Central SEBC List.
- **D:** Clause (3), inserted by the 105th Amendment, supplies own-list power by law.

Examiner trap 20: A State list may differ from the Central List; neither automatically controls the other's purposes.

MCQ 21. Article 366(26C) functions as:

A. the constitutional definition bridge for socially and educationally backward classes B. a commission appointment clause C. the SC-list amendment route D. a reservation-percentage ceiling

Answer: A.

Option-specific explanations:

- **A:** It links the defined class to Article 342A for the relevant Central or State/UT purpose.
- **B:** Appointments are governed by Article 338B(3).
- **C:** SC-list change is governed by Article 341(2).
- **D:** The clause defines a class; it does not fix a quota percentage.

Examiner trap 21: A definition clause does not itself allocate reservation benefits.

MCQ 22. The pre-2018 statutory NCBC was created under the:

A. Protection of Human Rights Act, 1993 B. National Commission for Backward Classes Act, 1993 C. Scheduled Castes and Scheduled Tribes Act, 1989 D. Constitution (Eighty-ninth Amendment) Act, 2003

Answer: B.

Option-specific explanations:

- **A:** That Act created NHRC and State Human Rights Commissions.
- **B:** This Act implemented the permanent-body direction following Indra Sawhney.
- **C:** The PoA Act concerns specified offences and Special Courts.
- **D:** The 89th Amendment separated NCSC and NCST.

Examiner trap 22: The statutory NCBC and the constitutional NCBC have connected history but different legal sources.

MCQ 23. The central institutional direction in Indra Sawhney (1992) relevant here was to:

A. create NCSC under Article 338 B. permit SC sub-classification C. establish a permanent body for backward-class inclusion/over-inclusion/under-inclusion complaints D. restore State list power under Article 342A(3)

Answer: C.

Option-specific explanations:

- **A:** NCSC's roots lie in Article 338 and the 65th/89th Amendments.
- **B:** SC sub-classification was decided in Davinder Singh, not Indra Sawhney.
- **C:** This direction led to the 1993 NCBC statute.
- **D:** Article 342A did not exist in 1992.

Examiner trap 23: Indra Sawhney is relevant to NCBC's institutional origin, not a source of Article 338B.

MCQ 24. The 102nd Amendment did NOT:

A. insert Article 338B B. insert Article 342A C. insert Article 366(26C) D. restore explicit State/UT own-list power under Article 342A(3)

Answer: D.

Option-specific explanations:

- **A:** Article 338B constitutionalised NCBC.
- **B:** Original Article 342A was part of the 102nd architecture.
- **C:** The SEBC definition clause was inserted by the 102nd.
- **D:** The 105th Amendment, not the 102nd, supplied explicit clause (3) own-list power.

Examiner trap 24: Separate what the 102nd created from what the 105th corrected or clarified.

MCQ 25. The majority in Jaishri Laxmanrao Patil (2021) interpreted the original 102nd-Amendment scheme as:

A. displacing State power to identify SEBCs, prompting the 105th response B. abolishing NCBC C. allowing NCSC to alter SC lists D. making every reservation above fifty per cent valid

Answer: A.

Option-specific explanations:

- **A:** The majority reading of Article 342A centralised identification and triggered legislative response.
- **B:** The judgment did not abolish Article 338B.
- **C:** SC-list alteration remains under Article 341.
- **D:** The Maratha reservation failed; the judgment did not remove the ceiling wholesale.

Examiner trap 25: Keep the SEBC-identification holding distinct from the separate Maratha ceiling analysis.

MCQ 26. The constitutional purpose of the 105th Amendment was principally to:

A. make NCBC recommendations binding B. restore/clarify State and UT power to maintain own SEBC lists C. transfer SC-list power to Governors D. constitutionalise NHRC

Answer: B.

Option-specific explanations:

- **A:** No general binding-force clause was added.
- **B:** Article 342A(3) and connected changes re-established the dual-list position.
- **C:** Articles 341-342 were not transferred to Governors.
- **D:** NHRC remains statutory.

Examiner trap 26: The Amendment concerns identification competence, not reservation percentages or automatic validity.

MCQ 27. State of Punjab v Davinder Singh (2024) held that:

A. States may delete castes from the Article 341 list B. all creamy-layer observations formed one unanimous ratio C. evidence-based sub-classification within Scheduled Castes is constitutionally permissible in principle D. NCSC must approve every sub-classification statute

Answer: C.

Option-specific explanations:

- **A:** Sub-classification cannot alter the Presidential List.
- **B:** Creamy-layer observations appeared in separate opinions and must be distinguished from the binding ratio.
- **C:** The seven-judge Bench overruled E.V. Chinnaiah on the sub-classification issue.
- **D:** The judgment did not create an NCSC veto.

Examiner trap 27: Distribution within a list is not deletion from or alteration of the list.

MCQ 28. Which statement correctly distinguishes related cases?

A. Jarnail Singh created NCBC B. Janhit Abhiyan decided Article 342A State lists C. E.V. Chinnaiah upheld sub-classification and remains controlling D. Jarnail Singh concerns promotion/creamy-layer doctrine; Janhit Abhiyan concerns EWS; neither enlarges commission powers

Answer: D.

Option-specific explanations:

- **A:** NCBC's statutory origin followed Indra Sawhney.
- **B:** Janhit Abhiyan upheld the 103rd-Amendment EWS framework.
- **C:** Davinder Singh overruled E.V. Chinnaiah on SC sub-classification.
- **D:** This accurately confines the cross-links and preserves institutional boundaries.

Examiner trap 28: Citing a reservation case does not transfer the court's doctrine into a commission's jurisdiction.

MCQ 29. NCSC's role regarding offences under the PCR and SC/ST PoA framework is best described as:

A. monitoring safeguards, inquiring into complaints and recommending action B. registering every FIR itself C. conducting criminal trials D. sentencing convicted offenders

Answer: A.

Option-specific explanations:

- **A:** Article 338 supports monitoring and inquiry across relevant safeguards.
- **B:** Police register and investigate criminal cases under law.
- **C:** Special/competent courts conduct trials.
- **D:** Sentencing is a judicial function.

Examiner trap 29: Monitoring criminal-law safeguards is not criminal-process control.

MCQ 30. NCST's relationship with PESA and forest-rights administration is:

A. it directly administers every Gram Sabha B. it monitors/advises on safeguards but does not finally decide statutory claims C. it replaces Governors' Fifth Schedule functions D. it fixes all minor-mineral concessions

Answer: B.

Option-specific explanations:

- **A:** PESA assigns powers through State law and Gram Sabha/Panchayat institutions.
- **B:** This preserves the commission's oversight role and the statutory decision route.
- **C:** Article 338A does not transfer Fifth Schedule administration to NCST.
- **D:** Resource concessions remain governed by applicable law and competent authorities.

Examiner trap 30: The 2005 additional functions broaden scrutiny, not executive administration.

MCQ 31. Which comparison is correct?

A. NHRC and NCBC are both constitutional B. State commissions derive automatically from Articles 338-338B C. NCSC/NCST/NCBC are constitutional; NHRC, NCW, NCM and NCPDR are statutory D. Courts and commissions issue the same remedies

Answer: C.

Option-specific explanations:

- **A:** NHRC is created by the Protection of Human Rights Act, 1993.
- **B:** State commissions depend on State laws or other applicable frameworks, not automatic creation by these Union Articles.

- **C:** This is the correct source-of-authority distinction.
- **D:** Courts adjudicate binding remedies; commissions investigate and recommend.

Examiner trap 31: Constitutional versus statutory status does not by itself answer the separate remedies question.

MCQ 32. Which reform best respects the commissions' constitutional design?

A. placing all three under NHRC B. allowing recommendations to amend lists automatically C. replacing specialist bodies with one ministry cell D. transparent appointments, accessible intake, shared referral/data standards and tracked government responses

Answer: D.

Option-specific explanations:

- **A:** A statutory umbrella cannot simply subordinate constitutional commissions.
- **B:** List alteration must follow Articles 341, 342 or 342A.
- **C:** An executive cell would reduce independence and visibility.
- **D:** This strengthens capacity and coordination without creating parallel courts.

Examiner trap 32: Match reform to the actual weakness: access, evidence, capacity and follow-up.

PYQS AND ANSWER PRACTICE

Audited PYQ routing and key discipline

- Four direct Mains demands are retained from locally audited official-paper wording: 2018 GS-II Q2 and Q16, 2020 GS-II Q15, and 2022 GS-II Q5.
- The direct 2023 objective item is retained without an official answer letter because the final official key is not held in the audited local source set.
- The adjacent 2024 Article 342 item carries the locally held official Set-A key.
- Descriptive papers have no official model-answer key; the answers below are examiner-oriented models, not official answers.

Verified PYQ 1 - UPSC GS-II 2018, Q2 - 10 marks, 150 words

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (119 words):

NCSC cannot itself enforce SC reservation in religious-minority educational institutions.

Article 338 authorises NCSC to monitor safeguards, inquire into deprivation complaints, advise government and report recommendations. Clause (8) supplies evidence-gathering powers, not a decree-enforcement jurisdiction. Article 15(5), while enabling special provisions for SEBCs and SCs/STs in admissions, expressly excludes minority educational institutions protected by Article 30(1).

NCSC may seek records, investigate discrimination outside legitimate minority autonomy, recommend corrective policy and expose non-compliance through reports. It cannot create a reservation obligation where the constitutional text excludes such institutions, nor execute its view like a court.

Thus, NCSC has investigative and persuasive authority; enforceable reservation must arise from valid constitutional and statutory authority, subject to the minority-institution limitation.

Verified PYQ 2 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (175 words):

Overlap among rights commissions is real, but wholesale merger is not the best remedy.

An umbrella arrangement could simplify intake, reduce forum-shopping, share regional infrastructure and create common data and follow-up standards. Intersectional complaints often cross caste, tribe, gender and human-rights mandates.

However, NCSC, NCST and NCBC possess distinct constitutional foundations under Articles 338, 338A and 338B. NCST's officially specified functions concerning land, forests, displacement, resources and PESA require tribal expertise; NCSC addresses untouchability, atrocity and service safeguards; NCBC also operates within the Central/State SEBC-list architecture. NHRC is itself statutory and recommendatory. Placing constitutional specialists beneath it would create authority conflicts and could dilute access and constituency knowledge.

Merger would also not cure vacancies, inadequate research, delayed reports or weak government follow-up. A better model is coordinated specialisation: common digital and offline intake, reasoned referral, joint inquiry where mandates overlap, interoperable regional offices, shared data standards and recommendation-wise response dashboards.

Therefore, rationalising statutory duplication may be justified, but constitutional specialists should remain distinct. Coordination can secure efficiency without sacrificing entrenched mandates and group-specific accountability.

Verified PYQ 3 - UPSC GS-II 2020, Q15 - 15 marks, 250 words

Which steps are required for constitutionalization of a Commission? Do you think imparting constitutionality to the National Commission for Women would ensure greater gender justice and empowerment in India? Give reasons.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (178 words):

Constitutionalisation requires an Article 368 amendment, not merely amendment of the existing NCW Act.

Parliament would need to insert a constitutional provision defining the body's existence, composition, appointment, tenure framework, duties, reporting route, inquiry powers and consultation role. The Bill must obtain the prescribed special majority; State ratification is needed only if the proposal touches a matter in the Article 368 proviso. Consequential legislation and rules must reconcile the NCW Act, service conditions and procedure.

Constitutional status could help. The Articles 338-338B model shows that entrenchment increases institutional continuity; President-to-Parliament reporting compels an action memorandum and reasons for rejecting recommendations; and consultation can bring gender impact into major policy design.

Yet status is insufficient. Existing constitutional commissions remain recommendatory. Civil-court powers collect evidence but do not punish. Executive-led appointments, vacancies, limited regional access, weak data, delayed reports and poor follow-up may persist. Gender justice also depends on police, courts, labour administration, health, education, budgets and local institutions.

Therefore, constitutionalisation can strengthen permanence and accountability, but empowerment requires transparent appointments, adequate capacity, accessible complaint systems and time-bound governmental response.

Verified PYQ 4 - UPSC GS-II 2022, Q5 - 10 marks, 150 words

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (116 words):

The 102nd Amendment transformed NCBC from a specialised statutory list adviser into a broader constitutional safeguard commission.

Following Indra Sawhney (1992), the NCBC Act, 1993 created a permanent body mainly for inclusion, exclusion and over/under-inclusion questions. In 2018, Article 338B added monitoring of all SEBC safeguards, complaint inquiry, development advice and evaluation, reports to the President, recommendations and major-policy consultation. Article 342A created the connected list architecture.

Constitutionalisation therefore increased permanence, mandate breadth and legislative visibility. However, NCBC remains recommendatory, not a court or unilateral list-maker. The 105th Amendment later clarified separate State/UT own-list power under Article 342A(3).

Its practical contribution depends on credible data, accessible hearings, timely reports and reasoned government follow-up.

Verified PYQ 5 - UPSC Prelims 2023, Q35

Consider the following organizations/bodies in India: 1. The National Commission for Backward Classes 2. The National Human Rights Commission 3. The National Law Commission 4. The National Consumer Disputes Redressal Commission How many of the above are constitutional bodies? A. Only one B. Only two C. Only three D. All four

Official-key discipline: The final official key is not held in the audited local source set; no option letter is presented as an official answer.

Concept resolution: NCBC is constitutional under Article 338B. NHRC and NCDRC are statutory; the Law Commission is constituted by executive resolution. The constitutional-body count is one.

Verified PYQ 6 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A key: B.

Explanation: Article 342 assigns initial specification to the President by public notification, after Governor consultation where a State is concerned. ST status is territorial, so statement 2 alone is correct.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: "Civil-court powers do not make NCSC, NCST and NCBC courts." Explain.

Model answer (116 words):

Articles 338(8), 338A(8) and 338B(8) confer selected civil-court powers only while the commissions investigate safeguards or inquire into complaints. They can summon persons from any part of India, examine them on oath, require documents, receive affidavits, requisition public records and issue commissions for witness or document examination.

These powers prevent an inquiry from depending on voluntary cooperation and improve the evidentiary basis of recommendations. However, the commissions cannot, merely under clause (8), convict, sentence, award executable damages, strike down law or finally determine legal rights. Courts and statutory enforcement authorities retain those functions.

Thus, the commissions are constitutional investigative, advisory and recommendatory bodies equipped with court-like procedure, not courts with plenary adjudicatory remedies.

Original Mains 2 - 10 marks, 150 words

Question: Examine how the reporting clauses of Articles 338, 338A and 338B create legislative accountability.

Model answer (117 words):

The reporting clauses convert specialist findings into an answerable constitutional record.

Each commission submits annual and other reports to the President. Under clause (6), Union-related material is laid before both Houses with a memorandum stating action taken or proposed and reasons for rejecting recommendations. For State matters, Articles 338(7) and 338A(7) route reports through the Governor; Article 338B(7) uses the State Government, which causes legislative laying.

This process enables legislators and committees to compare finding, response and justification. Its force is transparency and political scrutiny, not automatic implementation.

Accountability weakens when submission, laying, memoranda or follow-up are delayed. Therefore, recommendation-wise tracking and timely legislative scrutiny are needed to convert formal reporting into practical correction.

Original Mains 3 - 15 marks, 250 words

Question: Compare the constitutional design and distinctive domains of NCSC, NCST and NCBC.

Model answer (194 words):

Articles 338, 338A and 338B use a common institutional design for different terrains of disadvantage.

Each commission has a Chairperson, Vice-Chairperson and three Members appointed by Presidential warrant. Each regulates procedure, monitors safeguards, inquires into complaints, advises and evaluates development, reports and recommends, exercises specified civil-court powers during inquiry, and is normally consulted on major policy.

NCSC focuses on SC safeguards including untouchability, discrimination, representation, services and the working of PCR/PoA protections. It monitors but does not investigate crimes or conduct trials.

NCST addresses tribal disadvantage rooted in territory and resources. The 2005 Rules specifically add minor forest produce, minerals and water as provided by law, livelihoods, displacement, land alienation, forest participation, PESA and shifting cultivation. It does not administer Scheduled Areas or decide FRA titles.

NCBC evolved from the 1993 statutory list adviser into a broad SEBC safeguard commission under the 102nd Amendment. Its distinctive setting includes Central and State SEBC lists under Article 342A; after the 105th Amendment, clause 338B(9) consultation does not apply to Article 342A(3) own-list purposes.

The bodies are therefore constitutional peers, but specialist evidence and institutional interfaces differ. None is a court or final list-maker.

Original Mains 4 - 15 marks, 250 words

Question: Explain the constitutional routes for specifying SCs, STs and SEBCs. What role do the national commissions play?

Model answer (193 words):

The Constitution separates expert advice from the final legal act of specification.

For Scheduled Castes, Article 341 authorises the President, after consulting the Governor where a State is concerned, to specify communities by public notification. Parliament alone may later include or exclude by law. Article 342 creates the parallel, territory-specific route for Scheduled Tribes.

For socially and educationally backward classes, post-105th Article 342A creates two tracks. Clauses (1)-(2) govern the Central List for Central Government purposes: Presidential specification and parliamentary variation. Clause (3) permits every State or Union territory, by law, to prepare and maintain its own list for its own purposes; that list may differ from the Central List. Article 366(26C) supplies the definition bridge.

NCSC, NCST and NCBC can investigate safeguards, receive representations, compel evidence and recommend inclusion-related or protective measures within their mandates. Their reports may inform executive and legislative processing.

However, a commission recommendation is not the final inclusion instrument. Nor do caste-certificate authorities alter constitutional lists. Davinder Singh (2024) further distinguishes list identity from evidence-based internal distribution of SC reservation benefits.

Thus, commissions provide evidence and accountability; the Constitution assigns final specification to identified legal authorities.

Original Mains 5 - 20 marks, 250 words

Question: Trace the amendment-and-case trajectory that shaped the present NCSC, NCST and NCBC architecture.

Model answer (205 words):

Original Article 338 created a Special Officer for SCs and STs to investigate safeguards and report to the President. The 65th Amendment (1990; operational commission from 12 March 1992) replaced that officer with a multi-member combined NCSC/ST. The 89th Amendment (2003; effective 19 February 2004) amended Article 338 and inserted Article 338A, separating NCSC and NCST.

Backward-class institutional history followed another path. Indra Sawhney (1992) directed a permanent body for inclusion and over/under-inclusion complaints, leading to the NCBC Act, 1993. The 102nd Amendment (2018) inserted Article 338B, Article 342A and Article 366(26C), creating constitutional NCBC and a new SEBC-list framework.

In Jaishri Laxmanrao Patil (2021), the majority interpreted the original Article 342A scheme as displacing State identification power. The 105th Amendment responded by expressly recognising State/UT own lists under Article 342A(3), adjusting Article 366(26C) and exempting that purpose from Article 338B(9) consultation.

Davinder Singh (2024) addressed a different question: internal SC sub-classification. It overruled E.V. Chinnaiah on that issue and permitted evidence-based sub-classification without changing the Article 341 list. Creamy-layer observations in concurrences must not be presented as the unanimous ratio.

The trajectory shows specialisation, constitutionalisation and federal correction, while leaving commissions recommendatory rather than reservation-granting authorities.

Original Mains 6 - 20 marks, 250 words

Question: Constitutional status is necessary but insufficient for effective social-justice commissions. Evaluate and suggest reforms.

Model answer (203 words):

Constitutional status gives NCSC, NCST and NCBC permanence, a nationally recognised mandate, Presidential appointment, procedure-regulating power, compulsory evidence tools, major-policy consultation and reports linked to legislatures. These features raise visibility and the political cost of silent governmental inaction.

Yet effectiveness depends on the full accountability chain. Executive-led selection may reduce perceived independence; vacancies and limited regional staff restrict access; fragmented case management obscures delay; weak disaggregated data produces generic recommendations; and late report laying or formulaic action memoranda weakens follow-up. Persons facing caste, tribal, gender, disability or geographic disadvantage may also encounter intersectional barriers and digital exclusion.

Reform should therefore be institutional, not rhetorical: publish eligibility and selection criteria; maintain a vacancy calendar; strengthen professional investigation and research cadres; provide multilingual regional, mobile and offline complaint channels; adopt privacy-protective case tracking; create common referral and joint-inquiry protocols among commissions; and require recommendation-wise, time-bound government responses followed by

legislative-committee scrutiny.

Blanket binding power is not an easy cure. It could blur administration and adjudication unless jurisdiction, procedure, appeal and competence are carefully designed. Courts and enforcement agencies must retain their legal roles.

Thus, the sound objective is stronger independent evidence, accessible process and accountable response-not conversion of commissions into parallel governments or courts.